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PRESENTENCE REPORT COUNTERFACTUAL BRANCH — NEVER
FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED
FICTIONAL DOCKET SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED**

Never-Filed Government First Threshold Motion to Dismiss for Rule 4(b) Untimeliness and Appeal Waiver

Never-filed date: March 25, 2026 **Isolated synthetic docket:** SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED **Never-filed document number:** 6

The fictional United States moves to dismiss the entire isolated appeal under Federal Rule of Appellate Procedure 4(b). In the alternative, if the court declines timing dismissal, the government asks it to enforce the appeal waiver against Serrano's Guidelines role challenge while recognizing the agreement's express reservation for complete denial of allocution.

This is the government's first substantive filing addressing disposition in the branch. The government filed no earlier motion, brief, response, or merits paper. Case opening, limited remand, district findings, and the clerk's resumption notice were court-administered steps rather than a government disposition response.

The motion deliberately invokes every apparent threshold ground now: Rule 4(b) untimeliness and the plea waiver. It seeks no merits ruling on § 3B1.1(b) or allocution. Because the timing ground disposes of the whole branch appeal, the court should decide that ground first and leave the alternative waiver issue unresolved.

Rule 4(b) Requires Dismissal When Invoked

Rule 4(b)(1)(A) allowed 14 days after entry of judgment. The February 25 judgment made March 11 the final ordinary day under Rule 26(a). The notice was delivered directly to the district clerk on March 12, day 15.

The criminal deadline is not jurisdictional, but it is a mandatory claim-processing rule. *United States v. Marsh*, 944 F.3d 524 (4th Cir. 2019), requires strict application when the government properly invokes it and rejects equitable circumvention of the prescribed process. *United States v. Brantley*, 87 F.4th 262 (4th Cir. 2023), likewise treats prompt invocation as requiring dismissal without regard to the substantive claim asserted.

The government invokes the rule expressly and at its first opportunity to address disposition after completion of the limited remand. The court therefore need not ask whether it could overlook the delay absent an objection. The objection is now before it.

Dismissal under Rule 4(b) is the requested disposition. The government does not characterize the filing defect as a jurisdictional bar and does not ask the court to issue an advisory merits opinion before enforcing the mandatory rule.

The Extension Inquiry Is Closed

The March 20 district order found that Rule 4(c) supplies no earlier date, no Rule 4(b)(3) motion tolled time, the clerk was accessible on March 11, and no government notice or other event altered the period. Those findings returned on March 23.

Serrano expressly disclaimed a Rule 4(b)(4) extension and every asserted excuse. Judge Venn separately found neither excusable neglect nor good cause and declined relief. The branch notice thus remains filed on day 15.

The appellate court cannot replace the missing district finding with a free-floating equitable exception. Marsh directs strict treatment of Rule 4(b) once invoked, and the rule itself identifies the available extension mechanism. That mechanism was promptly considered and completed.

No question about the length of a potential extension remains. The district court did not grant one day, thirty days, or any other period. The government's motion accepts the returned facts and asks the panel to apply their procedural consequence. Confidential sentencing evidence is irrelevant to that determination.

Prompt, Complete Threshold Invocation

Local Rule 27(f)(2) and *United States v. Kemp*, 88 F.4th 539 (4th Cir. 2023), require care when several threshold grounds are apparent. Kemp explains that a government first response addressing disposition can forfeit an omitted apparent ground. This motion avoids that problem by identifying both timing and waiver.

The March 25 filing follows two days after the certified return. Nothing earlier required the government to choose a disposition position while the district court was deciding whether the filing period would be extended. The motion is therefore prompt under the sequence created by the limited-remand order and under Brantley's timely-invocation principle.

The government does not reserve another apparent threshold objection for later. Rule 4(b) supports dismissal of the entire appeal. The waiver is offered only as an alternative concerning the Guidelines target because its express allocution reservation prevents using that agreement to eliminate the reserved claim.

Combining the grounds preserves both without conflating them. The panel may enforce the timing rule first, dismiss the appeal, and decline to address waiver validity, waiver scope, or any substantive sentencing question.

Alternative Waiver Validity

If the panel reaches the plea agreement, the record establishes a knowing and intelligent waiver. Judge Venn addressed Serrano personally at the Rule 11 hearing, explained the broad surrender of conviction and sentencing appeals, separately explained the narrow allocution reservation, and obtained Serrano's confirmation that he understood each part.

The fictional United States performed its obligations and did not breach the agreement. Under *United States v. Boutcher*, 998 F.3d 603, 608–09 (4th Cir. 2021), the court reviews enforceability de novo and applies a valid waiver to issues within its unambiguous scope when the government has not breached.

The government does not reproduce the agreement's full clause in this motion. In summary, it covers appeals from the conviction and sentence, including statutory sentence review and Guidelines disputes, but preserves a claim that the court wholly denied Serrano the personal opportunity to allocute required by Rule 32.

That careful division permits target-specific enforcement if timing dismissal is unavailable. It does not authorize dismissal of the expressly reserved allocution issue under the waiver.

Alternative Waiver Scope

Serrano's challenge to the three-level manager-or-supervisor adjustment is an ordinary Guidelines-calculation dispute within the waiver's broad sentencing scope. The agreement specifically encompasses sentence review under 18 U.S.C. § 3742. Enforcing it would dismiss that target without deciding whether Serrano supervised Alina Pared.

The allocution issue stands differently. Although *United States v. Ashford*, 103 F.4th 1052, 1056–57 (4th Cir. 2024), recognizes that a generic sentencing waiver can encompass allocution, this agreement contains an express exception for complete denial of a personal opportunity to speak. The government does not ask the court to erase that exception.

Accordingly, the alternative waiver disposition would be narrower than the requested Rule 4(b) dismissal. It would remove the role-enhancement target and leave the reserved allocution issue for further proceedings. The panel should not decide the enhancement facts on the merits in order to determine scope.

Because the timely invoked filing rule applies to the whole appeal regardless of substance, the court can avoid this alternative analysis. The government presents it now only to preserve the apparent threshold ground under *Kemp* and the local rule.

Requested Relief and Service

The government respectfully requests an order dismissing the isolated appeal under Rule 4(b). The March 12 notice was untimely, the district court declined an extension after express findings, and this first disposition filing promptly invokes the mandatory claim-processing rule.

If the court rejects that ground, the government alternatively asks it to enforce the valid waiver against the § 3B1.1(b) challenge while leaving the express complete-denial-of-allocation reservation intact. Under either route, the panel should issue no merits ruling about person management in deciding this motion.

Bram Ives signs on March 25, 2026, for the Synthetic United States Attorney's Office and certifies fictional service on Celia Arden. No real address, email, bar number, account, or filing credential appears. The motion uses no sealed presentence exhibit or operational offense detail.

This paper was never filed in the actual appeal. It belongs only to SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED and cannot change any actual notice, briefing sequence, judgment, or disposition.